

CHAPTER - 3

Preamble, Union & its Territories, Citizenship

PREAMBLE –

The term 'preamble' refers to the introduction or preface to the Constitution. It embodies the basic philosophy and fundamental values on which the Constitution is based.

The Preamble to the Indian Constitution is based on the 'Objectives Resolution', drafted and moved by Former Prime Minister Jawaharlal Nehru on December 13, 1946 and adopted by the Constituent Assembly on January 22, 1947.

Preamble states as follows:

"**WE, THE PEOPLE OF INDIA**, having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity; and to promote among them all;

FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this 26th day of November, 1949, do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.**"

It was amended by 44th Amendment Act, 1976.

COMPONENTS OF PREAMBLE

- 1) **Source of authority of the Constitution:** People of India.
- 2) **Nature of Indian State:** Sovereign, Socialist, Secular, Democratic, Republic
- i) **Sovereign:** Being a Sovereign State, India is free from any type of external control. It is neither a dependency nor a dominion of any other nation, but an independent state. The word sovereign means that the State has power to legislate on any subject in conformity with constitutional limitations.
- ii)- **Socialist:** The term was added by the 42nd Constitutional Amendment Act of 1976. What was hitherto implicit in the Constitution was made explicit. Notably, the Indian brand of socialism is a 'democratic socialism' and not a 'communistic

socialism'. Democratic socialism holds faith in a 'mixed economy' where both public and private sectors co-exist side by side. Democratic Socialism aims to end poverty, ignorance, disease and inequality of opportunity.

- iii) **Secular:** The term 'secular' was added by the 42nd Constitutional Amendment Act of 1976.

It means that the State has no official religion. Secularism pervades its provisions which give full opportunity to all persons to profess, practice, and propagate religion of their choice.

The Indian Constitution embodies the positive concept of secularism i.e., all religions in our country have the same status and support from the state.

- iv) **Democratic:** It is based on the doctrine of popular sovereignty, that is, possession of supreme power by the people. The Indian Constitution provides for representative parliamentary democracy under which the executive is responsible to the legislature for all its policies and actions.

- v) **Republic:** In a republic the head of the state is always elected directly or indirectly for a fixed period. India has an elected head called the president. He is elected indirectly for a fixed period of five years.

- 3) **Objectives of the Constitution:** Justice, Liberty, Equality, and Fraternity

- i) **Justice:** The term Justice embodies social, economic and political justice.

Social justice means absence of privileges being extended to any particular section of the society, and improvement in the conditions of backward classes and women.

Economic justice denotes the non-discrimination between people on the basis of economic factors.

Social Justice + Economic Justice = Distributive Justice.

Political justice implies that all citizens should have equal political rights, equal access to all political offices and equal voice in the government.

- ii) **Liberty:** It means the absence of restraints on the activities of individuals. The Preamble secures liberty of thought, expression, belief, faith and worship through Fundamental Rights.

- iii) **Equality:** It means the absence of special privileges to any section of the society, and the provision of

adequate opportunities for all individuals without any discrimination. Right to Equality is a fundamental right and it has been incorporated under Article 14 to 18.

- iv) Fraternity: It means a sense of brotherhood. The Preamble declares that fraternity has to assure two things—the dignity of the individual and the unity and integrity of the nation. The word 'integrity' has been added to the preamble by the 42nd Constitutional Amendment Act of 1976.
- 4) Date of adoption of the Constitution: 26th November 1949

PREAMBLE: PART OF THE CONSTITUTION.

In Re: the Berubari Union Case AIR 1960 SC 845 – The Supreme Court held that Preamble is not a part of Indian Constitution.

In Kesavananda Bharati Sripadagalvaru and Ors v. State of Kerala and Anr Writ Petition (civil) 135 of 1970- The Supreme Court rejected the earlier opinion and held that Preamble is a part of the Constitution.

PART-I : THE UNION AND ITS TERRITORIES

Part I of Indian Constitution is titled The Union and its Territory.

Article 1 : Name and territory of the Union.

Article 2 : Admission or establishment of new States.

Article 3 : Formation of new States and alteration of areas, boundaries or names of existing States.

Article 4 : Laws made under articles 2 and 3 to provide for the amendment of the First and the Fourth Schedule and supplemental, incidental and consequential matters.

PART-II : CITIZENSHIP

A citizen is a person who enjoys full membership of the community or State in which he lives or ordinarily lives. The State demands extra duty from its citizen which cannot be asked to non-citizens. 42nd Constitution (Amendment) Act, 1976 has inserted 10 Fundamental Duties in Article 51-A.

Ways to acquire Indian Citizenship

Constitution of India under Citizenship (Amendment) Act, 1986 provides five ways to acquire citizenship of India. These five ways are:

(a) Citizenship by Birth

(b) Citizenship by Descent

(c) Citizenship by Registration

(d) Citizenship by Naturalization

(e) Citizenship by incorporation of Territory